Deposit Agreement

HOLDING SOMETHING WITH A DEPOSIT

This agreement is made on _____ between _____ (the **"Business"**) and _____ (the **"Customer"**).

1. What the deposit holds

1.1 The Customer pays a deposit to hold the following for the Customer:

_____

(the **"Booking"**).

1.2 While the deposit is held, the Business will not offer the Booking to anyone else, and will keep it available on the terms that were quoted to the Customer.

2. The deposit

2.1 Amount, in US dollars: _____. The Customer pays it by card, on a secure page, before signing: _____

2.2 The Business will give a receipt. The deposit is part of the price of the Booking and will be deducted from what the Customer pays for it, unless it is refunded as set out below.

2.3 The Business will hold the deposit _____. No interest is paid on it unless the law requires.

3. When the deposit is refunded

3.1 The Business will refund the deposit in full, within _____, if: _____.

3.2 The Business will also refund the deposit in full if it cannot provide the Booking, or if it changes the terms in a way that is materially worse for the Customer.

4. When the Business keeps the deposit

4.1 If the Customer cancels, or does not go ahead with the Booking, after _____, the Business may keep the deposit.

4.2 The Customer agrees that the deposit is a fair estimate of the cost to the Business of holding the Booking and of the loss it would suffer if the Customer does not go ahead, and is not a penalty. If the Business has lost more than the deposit, it may not claim the difference

unless the original terms allow it.

5. How to cancel

5.1 The Customer may cancel by writing to the Business. The date that counts is the date the Business receives the message.

6. If the Booking changes

6.1 If the Customer asks to move the Booking to a different date or to change what it includes, the Business will tell the Customer within five business days whether it can, and any difference in price. If it can, the deposit carries across to the changed Booking.

6.2 If the Business has to change the Booking in a way that makes it materially different, such as a different date or place, the Customer may choose to accept the change or to cancel and receive a full refund of the deposit.

7. Paying the rest

7.1 The rest of the price, which is _____, is paid on the terms quoted by the Business. The Business will give the Customer a receipt for every payment.

7.2 If the Customer does not pay the remaining price when it is due, the Business may treat the Booking as canceled after giving written notice and a reasonable chance to pay, and the deposit is then treated as described in section 4.

8. Governing law

8.1 This document, and any dispute arising out of it, is governed by the laws of the State of _____, without regard to its rules about conflicts of laws.

9. General

9.1 **Changes in writing.** A change to this agreement is effective only if it is in writing and signed by both sides. An email exchange does not change it unless each side expressly says that it is a change and signs it electronically.

9.2 **Counterparts and electronic signatures.** This agreement may be signed in separate copies, which together are one document. A signature made electronically, including by typing, drawing or selecting a signature, is as effective as a handwritten one, and each side agrees to sign and keep this agreement in electronic form.

Signatures

By signing below, each party agrees to this document and confirms that the person signing has the authority to do so.

BUSINESS

PRINTED NAME

TITLE OR CAPACITY

SIGNATURE

DATE

CUSTOMER

PRINTED NAME

SIGNATURE

DATE